

## Attachment D-1

### FORMS, AFFIDAVITS AND DOCUMENTATION CHECKLIST

Any contract/purchase order resulting from this solicitation shall include the forms indicated below. Contractor shall complete the required forms and submit them with the application. Failure to submit the completed forms and documentation may be a basis for rejection of your proposal.

|                          | Completed Documents REQUIRED WITH APPLICATION | Notes                                                                                            |
|--------------------------|-----------------------------------------------|--------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <b>Certificate of Authority</b>               | Select the applicable form and complete (applicant may submit their own Resolution of Authority) |
| <input type="checkbox"/> | <b>Affidavit of Disclosure of Interests</b>   | Read and Complete; Must be notarized                                                             |
| <input type="checkbox"/> | <b>Non-Collusion Affidavit</b>                | Read and Complete; Must be notarized                                                             |
| <input type="checkbox"/> | <b>Amendment Acknowledgment</b>               | Read and Complete if applicable                                                                  |

## **CORPORATION CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_, Corporate Secretary of  
(name of corporate secretary)

\_\_\_\_\_, a \_\_\_\_\_  
(complete name of corporation) (state of incorporation)

\_\_\_\_\_, corporation (the "Corporation"), **DO HEREBY CERTIFY** that  
(non-profit or for profit)

the following is a true and correct excerpt from the minutes of the meeting of the Board of Directors duly called and held on \_\_\_\_\_, and that the same is now in full force and effect:  
(date of meeting)

**"RESOLVED**, that the Chairman, the President, each Vice President, the Treasurer, and the Secretary and each of them, is authorized to execute and deliver, in the name of and on behalf of the Corporation and under its corporate seal or otherwise, any agreement or other instrument or document ('Contract') in connection with any matter or transaction that shall have been duly approved; and the execution and delivery of any Contract by any of the aforementioned officers shall be conclusive evidence of such approval."

**FURTHER, I CERTIFY** that \_\_\_\_\_ is Chairman  
\_\_\_\_\_ is President,  
\_\_\_\_\_ is/are Vice President(s),  
\_\_\_\_\_ is Treasurer,  
\_\_\_\_\_ is Secretary,  
\_\_\_\_\_ is Executive Director, and  
\_\_\_\_\_ is \_\_\_\_\_.

**FURTHER, I CERTIFY** that any of the aforementioned officers or employees of the Corporation are authorized to execute and commit the Corporation to the conditions, obligations, stipulations and undertakings contained in the foregoing Contract between the City and the above-referenced Corporation and that all necessary corporate approvals have been obtained in relationship thereto.

**IN WITNESS THEREOF**, I have set my hand this . day of \_\_\_\_\_, 20\_\_\_\_.

CORPORATE SEAL (if any)

\_\_\_\_\_  
Corporation Secretary

**PLEASE NOTE THAT THE PERSON WHO SIGNS THE CONTRACT ON BEHALF OF YOUR CORPORATION MUST BE ONE OF THE INDIVIDUALS LISTED ABOVE AS PERSON AUTHORIZED TO EXECUTE CONTRACTS IN THE NAME OF AND ON BEHALF OF THE CORPORATION.**

**LIMITED LIABILITY COMPANY CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_, a Manager or Member

(name of manager)

of \_\_\_\_\_, L.L.C, a limited liability company (the "Company"), **DO**

(name of company)

**HEREBY CERTIFY** that I am a Manager or Member of the Company who has the authority to act as an agent of the Company in executing this Certificate of Authority. I further certify that the following individuals are Managers or Members of the Company who have the authority to execute and commit the Company to the conditions, obligations, stipulations and undertakings contained in the foregoing Contract between the City and the Company:

|       |       |
|-------|-------|
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |

**FURTHER, I CERTIFY** that all necessary approvals by the Managers or Members of the Company have been obtained with respect to the execution of said Contract.

**IN WITNESS THEREOF**, I have set my hand this \_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_.

COMPANY SEAL( if any )

\_\_\_\_\_  
Manager or Member

**PLEASE NOTE THAT THE PERSON WHO SIGNS THE CONTRACT ON BEHALF OF YOUR LIMITED LIABILITY COMPANY MUST BE ONE OF THE INDIVIDUALS LISTED ABOVE AS A PERSON AUTHORIZED TO EXECUTE CONTRACTS IN THE NAME OF AND ON BEHALF OF THE LIMITED LIABILITY COMPANY.**

## **PARTNERSHIP CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_, A General Partner in \_\_\_\_\_,  
(name of general partner)  
a \_\_\_\_\_ County, \_\_\_\_\_ Partnership ("the Partnership")  
(county of registration) (state in which county lies)

**DO HEREBY CERTIFY** that I am a General Partner in the Partnership formulated pursuant to  
a Partnership Agreement dated \_\_\_\_\_, and that the following is a true and  
(date of meeting)  
correct excerpt from the minutes of the meeting of the General Partnership held on \_\_\_\_\_  
and that the same is now in full force and effect:

**"RESOLVED**, that each General Partner is authorized to execute and deliver, in the name and on  
behalf of the Partnership, any agreement or other instrument or document ('Contract') in connection  
with any matter or transaction that shall have been duly approved; and the execution and delivery of any  
Contract by a general partner shall be conclusive evidence of such approval."

**FURTHER, I CERTIFY** that the following persons are General Partners:

|       |       |
|-------|-------|
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |

**FURTHER, I CERTIFY** that any of the aforementioned General Partners of the Partnership are  
authorized to execute and commit the Partnership to the conditions, obligations, stipulations and  
undertakings contained in the foregoing Contract between the City and the above-referenced  
partnership that all necessary approvals have been obtained in relationship thereto.

**IN WITNESS THEREOF**, I have set my hand this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_.

CORPPORATE SEAL (if any)

\_\_\_\_\_  
General Partner

**PLEASE NOTE THAT THE PERSON WHO SIGNS THE CONTRACT ON BEHALF OF  
YOUR PARTNERSHIP MUST BE ONE OF THE INDIVIDUALS LISTED ABOVE AS A  
PERSON AUTHORIZED TO EXECUTE CONTRACTS IN THE NAME OF AND ON  
BEHALF OF THE PARTNERSHIP.**

## **UNINCORPORATED ASSOCIATION CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_, Secretary of \_\_\_\_\_,

(name of association secretary)

an unincorporated association (the "Association"), **DO HEREBY CERTIFY** that the following is a true and correct excerpt from the minutes of the meeting of the Board of Directors duly called and held on \_\_\_\_\_, and that the same is now in full

(date of meeting)

Force and effect:

**"RESOLVED**, that the Chairman, the President, each Vice President, the Treasurer, and the Secretary and each of them, is authorized to execute and deliver, in the name of an on behalf of the Association and under its Association seal or otherwise, any agreement or other instrument or document ("Contract") in connection with any matter or transaction that shall have been duly approved; and the execution and delivery of any Contract by any of the aforementioned officers shall be conclusive evidence of such approval."

**FURTHER, I CERTIFY** that \_\_\_\_\_ is Chairman

\_\_\_\_\_ is President,

\_\_\_\_\_ is/are Vice President(s),

\_\_\_\_\_ is Treasurer,

\_\_\_\_\_ is Secretary,

\_\_\_\_\_ is Executive Director, and

\_\_\_\_\_ is \_\_\_\_\_.

**FURTHER, I CERTIFY** that any of the aforementioned officers of the Association are authorized to execute or guarantee and commit the Association to the conditions, obligations, stipulations, and undertakings contained in the foregoing Contract between the City and the above-referenced Association and that all necessary Association approvals have been obtained in relationship thereto.

**IN WITNESS THEREOF**, I have set my hand this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_\_.

CORPORATE SEAL (if any)

\_\_\_\_\_  
Association Secretary

**PLEASE NOTE THAT THE PERSON WHO SIGNS THE CONTRACT ON BEHALF OF YOUR ASSOCIATION MUST BE ONE OF THE INDIVIDUALS LISTED ABOVE AS A PERSON AUTHORIZED TO EXECUTE CONTRACTS IN THE NAME OF AND ON BEHALF OF THE ASSOCIATION.**

## **AFFIDAVIT OF DISCLOSURE OF INTERESTS**

**Instructions.** Completing and submitting this disclosure affidavit fulfills the disclosure requirements of Section 2-106.2 of the [2012 Detroit City Charter](#) and Section 2-5-34 of the [2019 Detroit City Code of Ordinances](#), as well as Sections 200.212, .318(c) of the Uniform Guidance found at 2 C.F.R. 200 *et seq.* Please complete all applicable sections by typing or legibly printing. Where a section does not apply, please check the appropriate box and skip to the next section. If necessary, provide additional information on page 4 or attach additional documents to this disclosure affidavit. **This disclosure affidavit must be signed, notarized, and filed with the applicable bid or response to a Notice of Funds Availability (NOFA), as well as with the City of Detroit Board of Ethics, 7737 Kercheval, Suite #213, Detroit, MI 48214 (City Code § 2-5-34(b)).**

Note: An “**immediate family member**” of a person is that person’s spouse, domestic partner, an individual living in the person’s household, or an individual claimed as a dependent or spouse’s dependent under the Internal Revenue Code at 26 USC 1, *et seq.* (City Charter § 2-105.A.20; City Code § 2-5-3)

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### **Section 1 - Identity of Disclosing Filer (Individual/Contractor/Vendor) (Charter § 2-106.2.2; Code § 2-5-34)**

Provide the complete name of the filer (individual or business entity/organization seeking to do business with the City of Detroit) making this disclosure:

Name \_\_\_\_\_

Street Address \_\_\_\_\_

City \_\_\_\_\_ State \_\_\_\_\_ Zip code \_\_\_\_\_

Telephone \_\_\_\_\_ Fax \_\_\_\_\_ Email \_\_\_\_\_

If the filer is a business entity, print the name, title, and contact information of the authorized individual making the disclosure and signing for the business entity, and include the certificate or resolution of authority authorizing the individual as an attachment to this affidavit.

Name \_\_\_\_\_ Title \_\_\_\_\_

Telephone \_\_\_\_\_ Fax \_\_\_\_\_ Email \_\_\_\_\_

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### **Section 2 - Financial Interests in Contracts or Matters Pending Before City (Charter § 2-106.2.1(a), (b); Code § 2-5-34(a)(1), (2))**

The above-named contractor or vendor; its direct and/or indirect owners, officers, directors, and managers; and/or an immediate family member of any owner, officer, director, or manager thereof

☐ has (if checked, complete rest of section below)

☐ does not have (if checked, skip to next section)

a direct or indirect financial interest in the following matters that are pending before the Detroit City Council or the following office, department, or agency of the City \_\_\_\_\_

Matter \_\_\_\_\_

Interested Party (if an immediate family member, please provide an address and phone number and the nature of the relationship to the filer): Name \_\_\_\_\_

\_\_\_\_\_ Street Address \_\_\_\_\_

\_\_\_\_\_ City \_\_\_\_\_

State \_\_\_\_\_ Zip code \_\_\_\_\_ Telephone \_\_\_\_\_

Relationship \_\_\_\_\_

Nature of financial interest \_\_\_\_\_

Estimated value of the financial interest \_\_\_\_\_

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**Section 3 - Interests in Property Subject to Decision by City (City Charter § 2-106.2.1(c); City Code § 2-5-34(a)(3))**

The above-named contractor or vendor; its direct and/or indirect owners, officers, directors, and managers; and/or an immediate family member of any owner, officer, director, or manager thereof

☐ has (if checked, complete rest of section below)

☐ does not have (if checked, skip to next section)

an interest in real or personal property that is subject to a decision by the City regarding the purchase, sale, lease, zoning, improvement, special designation tax assessment or abatement or a development agreement.

Interested Party (if an immediate family member, please provide an address and phone number and the nature of the relationship to the filer): Name \_\_\_\_\_

\_\_\_\_\_ Street Address \_\_\_\_\_

\_\_\_\_\_ City \_\_\_\_\_

State \_\_\_\_\_ Zip code \_\_\_\_\_

Telephone \_\_\_\_\_ Relationship \_\_\_\_\_

Description of real or personal property \_\_\_\_\_

Nature of interest \_\_\_\_\_

Estimated value of the interest \_\_\_\_\_

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**Section 4 - Immediate Family Members Employed by or Seeking Employment with City (City Charter § 2-106.2.1(e); City Code § 2-5-34(a)(5))**

Please identify any immediate family member of the filer, including any immediate family members of a direct or indirect owner, officer, director, or manager thereof, who is currently employed by or applying for employment with the City of Detroit.

If none, check here ☐ and skip to next section; otherwise, complete rest of section below:

Name \_\_\_\_\_

Street address \_\_\_\_\_

City \_\_\_\_\_ State \_\_\_\_\_ Zip code \_\_\_\_\_

Phone \_\_\_\_\_

Nature of relationship to filer \_\_\_\_\_

Department/agency employed by or seeking employment with \_\_\_\_\_ Position held or sought \_\_\_\_\_

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**Section 5 - Persons with Financial Interest in Contractor's/Vendor's Matters Pending Before City**  
**(City Charter § 2-106.2.2; City Code § 2-5-34(a)(6), (7))**

Please identify all persons or entities having a direct or indirect financial interest in any matter the contractor or vendor has pending before the Detroit City Council or before any office, department, or agency of the City. Note that the term "financial interest" includes, but is not limited to receipt of a thing of value (either presently or in the future).

Complete on additional page(s), if necessary.

If none, check here ☐ and skip to next section; otherwise, complete rest of section below

Name \_\_\_\_\_

Street Address \_\_\_\_\_

City \_\_\_\_\_ State \_\_\_\_\_ Zip code \_\_\_\_\_

Contract or matter in which the person or entity named has a direct or indirect financial interest in the following matters that are pending before the Detroit City Council or the following office, department, or agency of the City:

\_\_\_\_\_

Nature of financial interest \_\_\_\_\_ Estimated value of the financial interest \_\_\_\_\_

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**Section 6 - Contractor/Vendor's Role In The Solicitation**

Please identify whether the Contractor/Vendor contributed information, expertise or in any other way participated in the creation of the project underlying the Solicitation, including, but not limited to, participation in the creation of the scope of the project, the requirements of the project, or the budget required for the project.

Complete on additional page(s), if necessary.

If the Vendor answers this question in the negative, please check here ☐ and skip to the next section; otherwise, complete the rest of the section below. Please use extra sheets if necessary.

Describe the nature and extent of the Vendor's contribution: \_\_\_\_\_



\_\_\_\_\_  
\_\_\_\_\_  
List the City employees with whom the Vendor assisted with the Solicitation: \_\_\_\_\_  
\_\_\_\_\_

Please list any of Vendor's subcontractors or proposed subcontractors that contributed information, expertise or in any other way participated in the creation of the project underlying the Solicitation, including, but not limited to, participation in the creation of the scope of the project, the requirements of the project, or the budget required for the project, along with the nature and extent of the subcontractor's contribution: \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**Section 7 - Affirmation of Accuracy of Disclosure (City Charter § 2-106.2.3; City Code § 2-5-34(b))**

I understand that the information provided in this disclosure will be relied upon by the City of Detroit in evaluating the proposed bid, solicitation, contract, or lease. I swear [or affirm] that the information provided is accurate. If I am signing on behalf of an entity, I swear [or affirm] that I have made a good faith and reasonable effort to verify the information provided herein, and further, that I have the authority to provide this disclosure on behalf of the entity.

Sign name: \_\_\_\_\_

Print name: \_\_\_\_\_

Sworn and subscribed to before me on \_\_\_\_\_, 20\_\_

by \_\_\_\_\_, the \_\_\_\_\_  
[name] [title]

of the \_\_\_\_\_ and am an authorized representative of  
that entity. [legal entity/company]

Sign: \_\_\_\_\_

Print: \_\_\_\_\_

Notary Public, \_\_\_\_\_ County,

Michigan, Acting in \_\_\_\_\_ County

My Commission Expires: \_\_\_\_\_

Notary Seal



[illegible]

## REFERENCES FOR DISCLOSURES BY CONTRACTORS AND VENDORS

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### 2012 Detroit City Charter

#### **Sec. 2-105. - Definitions and Rules of Construction.**

A. As used in this Charter:

\* \* \*

20. *Immediate family member* means a Public Servant's spouse, domestic partner, individual who lives in the Public Servant's household or an individual claimed by a Public Servant or a Public Servant's spouse as a dependent under the United States Internal Revenue Code at 26 USC 1, *et seq.*

\* \* \*

#### **Sec. 2-106.2. - Disclosures.**

1. Except as otherwise provided by applicable law, a Public Servant who exercises significant authority shall disclose:
  - a. Any financial interest, direct or indirect, that he or she or an immediate family member has in any contract or matter pending before City Council.
  - b. Any financial interest, direct or indirect, that he or she or an immediate family member has in any contract or matter pending before or within any office, department or agency of the City.
  - c. Any interest that he or she, or an immediate family member has in real and personal property that is subject to a decision by the City regarding purchase, sale, lease, zoning, improvement, special designation tax assessment or abatement or a development agreement.
  - d. Campaign contributions and expenditures, in accordance with applicable laws.
  - e. The identity of any immediate family member employed by the City or who is making application to the City.
2. In addition to compliance with subsection (1) above, contractors and vendors shall disclose:
  - a. The identity of all entities and persons with any financial interest, direct or indirect, in any contract or matter the vendor or contractor has pending before City Council.
  - b. The identity of all entities and persons with any financial interest, direct or indirect, in any contract or matter the vendor or contractor has pending before or within any office, department, or agency of the City.
3. The above disclosures shall be made in writing and be made by sworn, notarized affidavit, in accordance with City ordinance and applicable laws.

## 2019 Detroit City Code of Ordinances

### **Sec. 2-5-3 – Definitions.**

\* \* \*

*Immediate family member* means:

- (1) A public servant's spouse;
- (2) A public servant's domestic partner;
- (3) An individual claimed by a public servant or a public servant's spouse as a dependent under the United States Internal Revenue Code, being 26 USC 1 *et seq.*; or
- (4) An individual who lives in the household of a public servant.

\* \* \*

### **Sec. 2-5-34. - Disclosure of interests by contractors and vendors.**

- (a) Except as otherwise provided for by applicable law, all contractors and vendors doing business with the City of Detroit shall disclose the following:
  - (1) Any financial interest, direct or indirect, that the contractor or vendor or an immediate family member has in any contract or matter pending before City Council;
  - (2) Any financial interest, direct or indirect, that the contractor or vendor or an immediate family member has in any contract or matter pending before or within any office, department or agency of the City;
  - (3) Any interest that the contractor or vendor, or an immediate family member, has in real or personal property that is subject to a decision by the City regarding purchase, sale, lease, zoning, improvement, special designation tax assessment or abatement, or a development agreement;
  - (4) Campaign contributions and expenditures in accordance with applicable law;
  - (5) The identity of any immediate family member employed by the City or who is making application to the City;
  - (6) The identity of all entities and persons with any financial interest, direct or indirect, in any contract or matter that the contractor or vendor has pending before City Council;
  - (7) The identity of all entities and persons with any financial interest, direct or indirect, in any contract or matter that the contractor or vendor has pending before or within any office, department, or agency of the City.
- (b) All disclosures that are required under Subsection (a) of this section shall be made, in writing, on a form that is created by the Law Department and sworn to in the presence of a notary public. After completion, the form shall be filed with the Board of Ethics, which shall forward a complete copy of the form to the applicable department director or agency head.

## **NON-COLLUSION AFFIDAVIT**

Solicitation No. \_\_\_\_\_

Solicitation Title: \_\_\_\_\_

State of \_\_\_\_\_:

County of \_\_\_\_\_:

s.s.

I state that I am \_\_\_\_\_ of \_\_\_\_\_, and that I am authorized to make this affidavit on behalf of my firm, and its owners, directors, and, officers. I am the person responsible in my firm for the price(s) and the amount of this RFP.

I state that:

The price(s) and amount of this proposal has been arrived at independently and without consultation, influence, communication or agreement with (i) any other contractor, vendor or potential vendor, or (ii) the City of Detroit, including any of its departments, boards, commissions, officers, employee, or agents.

Neither the price(s) nor the amount of this proposal, and neither the approximate price(s) nor approximate amount of this proposal, have been disclosed to any other firm or person who is a vendor or potential vendor, and they will not be disclosed before the bid opening.

No attempt has been made or will be made to induce any firm or person to refrain from responding to this contract, or to submit a proposal higher than this proposal, or to submit any intentionally high or noncompetitive proposal or other form of complementary proposal.

The proposal of my firm is made in good faith and not pursuant to any agreement or discussion with, or inducement from, any firm or person to submit a complementary or other noncompetitive proposal, including, but not limited to, any agreement to circumvent any regulatory or City requirements that may be applicable.

\_\_\_\_\_, its affiliates, subsidiaries, officers, directors, and employees are not currently under investigation by any governmental agency and have not in the last five years been convicted or found liable for any act prohibited by state or federal law in any jurisdiction, involving conspiracy or collusion with respect to submitting a proposal on any public contract, except as follows: \_\_\_\_\_

I state that \_\_\_\_\_ understands and acknowledges that the above representations are material and important, and will be relied on by the City of Detroit in awarding the contract(s)/ purchase order(s) for which this proposal is submitted. I understand and my firm understands that any misstatement in this affidavit is and shall be treated as fraudulent concealment from the City of Detroit's Office of Contracting and Procurement of the true facts relating to the submission of this RFP.

Printed Name & Title of Authorized Representative: \_\_\_\_\_

Signature of Authorized Representative: \_\_\_\_\_

Date: \_\_\_\_\_

**\*\*This Document MUST be Notarized\*\***

Signature of Notary:\_\_\_\_\_

Printed Name of Seal of Notary:\_\_\_\_\_

My Commission Expires:\_\_\_\_/\_\_\_\_/\_\_\_\_

**AMENDMENT ACKNOWLEDGEMENT FORM**

Project/Solicitation No.: \_\_\_\_\_

Project Title: \_\_\_\_\_

The undersigned acknowledges receipt of the following  
amendments to the solicitation document:

Amendment No. \_\_\_\_\_, Dated \_\_\_\_\_ Company

Name: \_\_\_\_\_

Authorized Signature: \_\_\_\_\_

Name: \_\_\_\_\_ (Print)

Title: \_\_\_\_\_

Date: \_\_\_\_\_